

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Mandate-Stay Grant

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered July 29, 2026

Before Composite Jurist March, presiding, Composite Jurist Rowan, and Composite Jurist Slate. Granite Heron's July 27 motion to stay mandate is granted subject to the conditions stated below. Blue Ember's July 28 response confirms that its litigation committee authorized preparation of a petition for a writ of certiorari and supports a limited stay secured for the full affirmed judgment.

The contemplated petition presents a substantial question under Rule 41(d)(2)(A): whether express preservation of mitigation permitted the court to direct the entire \$1,500,000 deduction when technical qualification, timing, execution, and successful substitute performance allegedly remained open to rational dispute. That question controlled the branch judgment and is genuinely presented by the party adversely affected by the mitigation ruling.

Good cause also exists. A brief withholding avoids district enforcement and possible restitution administration while the petition is prepared, and Blue Ember consents only with full protection. Granite Heron shall submit security covering \$2,700,000 plus projected postjudgment interest for district-court approval within two business days. The undertaking must remain effective throughout the stay.

The clerk shall withhold mandate. This order does not change the July 9 opinion, the two-component affirmance, or any merits determination.

Duration, reporting, and isolation

The stay begins upon entry and may not exceed ninety days unless Blue Ember files its petition or obtains an extension of the filing period for good cause. If a petition is filed, the stay will continue until the Supreme Court's final disposition unless this Court orders otherwise. Counsel shall provide the clerk a copy of any petition, extension order, or dispositive Supreme Court action promptly.

Blue Ember shall notify this Court immediately if it abandons the contemplated petition. Granite Heron shall report any failure, lapse, or material reduction of security. Either circumstance permits prompt dissolution by panel order. The parties shall not treat the ninety-day limit as authorization to withhold that information or preserve a stay whose stated basis has ended.

The July 9 judgment was followed by a rehearing deadline of July 23 and an ordinary mandate date of July 30. No rehearing petition was filed. This timely order intervenes before mandate, so no recall is required. The clerk shall retain the mandate until a dissolution or other terminating event directs release.

Mitigation JMOL and the December 15, 2025 amended judgment remain affirmed. The conditional Rule 59 ruling remains dormant, liability and causation are unchanged, and no remand exists in this branch. This grant relies only on the grant-path motion and response; it does not incorporate the incompatible denial-path sources. Entered on the counterfactual docket with electronic notice to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb.